

26STCV05362 26STCV05362

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13 TENTATIVE RULING 9:15 a.m., Tuesday, September 22, 2026

ANITA

HAYDEN v. CITY OF LOS ANGELES, et al. [26STCV05362]

DEFENDANT

GREG MCMANUS'S DEMURRER and MOTION TO STRIKE AS TO THE COMPLAINT

MEET AND

CONFER: OK Counsel

for moving party declares that the parties met and conferred by video conference in compliance with Code Civ. Proc. § 430.41 (Estes Decl., ¶ 3.)

TIMELINE:

FEHA employment dispute

1/6/1992: Plaintiff Anita Hayden ("Hayden" or "Plaintiff"), who is an African American woman and a member of the Seventh Day Adventist Christian faith, begins her employment for Defendant City of Los Angeles (the "City") as a Special Officer II with the Los Angeles Police Department of Airports. Hayden receives multiple promotions and is ultimately promoted to the position of Port Police Captain with the Harbor Department on 7/23/2017. In this position, Hayden is assigned to be the Commanding Officer of the Patrol Operations Division and serves as a Command Duty Officer.

Circa 2010-2025: Moving Defendant Greg McManus

("McManus") is employed by the City as Deputy Chief and Operations Group Commander of the Los Angeles Port Police Division. McManus has direct

supervisory authority over Hayden and other Port Police Captains. Hayden alleges that McManus participated in unspecified “harassing conduct” against her based on her race and gender. (Compl., ¶¶ 204, 218, 269.)

For

brevity, selected allegations of harassment, discrimination, and retaliation are summarized in the Appendix below, because the specific allegations in the Complaint primarily pertain to Deputy Chief Randy Allen (“Allen”), as opposed to moving defendant McManus. (See *infra*, Section III.)

2/27/2024: After an internal affairs investigation is opened regarding an incident in July/August 2023 (see Appendix *supra*), Hayden participates in an administrative interview conducted by Port Police Professional Standards. The internal affairs investigation ultimately results in 45 allegations against Hayden (including falsifying time records, misuse of sick leave, unauthorized outside employment, dishonesty, and various policy violations). Hayden denies the allegations.

5/1/2024: Hayden receives a Notice of Intent to Discipline proposing her discharge by the City based on the internal affairs investigative results.

1/14/2025: Hayden receives a Notice of Discharge from the City’s Harbor Department, terminating her employment effective immediately. At the time of her termination, Hayden is 63 years old and months away from eligibility for full retirement benefits.

6/30/2025: Plaintiff files a government tort claim with the City, which is rejected on 8/18/2025. On 2/17/2026, Plaintiff receives a Right to Sue notice from the CRD.

2/17/2026: Plaintiff files the Complaint, alleging causes of action for:

1. FEHA Discrimination on the Basis of Race

2. FEHA Discrimination on the Basis of Gender

3. FEHA Discrimination on the Basis
of Age

4. FEHA Discrimination on the Basis
of Religious Creed

5. FEHA Harassment on the Basis of
Race

6. FEHA Harassment on the Basis of
Gender

7. FEHA Retaliation

8. FEHA Failure to Prevent
Discrimination, Harassment, and Retaliation

9. Wrongful Termination in Violation
of Public Policy

10.
Violation
of Labor Code section 132a (Workers' Compensation Retaliation)

11.
Intentional
Infliction of Emotional Distress ("IIED")

12.
Assault

13.
Battery

14.
Negligent
Hiring Retention and Supervision

8/18/2026: McManus files this Demurrer with a Motion
to Strike, which is followed by Plaintiff's Opposition (9/9/2026) and McManus's

Reply (9/15/2026).

TENTATIVE

RULING: DEFENDANT GREG MCMANUS'S DEMURRER is SUSTAINED with LEAVE TO AMEND.

DEFENDANT

GREG MCMANUS'S MOTION TO STRIKE is GRANTED.

I. DEMURRER

Defendant demurs to the fifth, sixth, and eleventh causes of action in the Complaint pursuant to Code of Civil Procedure section 430.10, subd. (e). This lawsuit arises out of an employment dispute between Hayden and her former employer, the City. Plaintiff also seeks to hold three individual defendants, including McManus, individually liable. Of the fourteen causes of action in the Complaint, only three are asserted against McManus: two causes of action for harassment (based on race and gender) and one cause of action for IIED. While the Complaint alleges extensive factual background alleging Hayden's employment and disciplinary history at the City and hostility from other co-workers, the Complaint is entirely devoid of facts describing McManus's specific role in the alleged harm to Hayden. Simply put, there is almost no mention of McManus in the lengthy Complaint beyond his identification as Hayden's supervisor and conclusory allegations that he participated in the harassment of Hayden. For this reason, as expanded upon below, the Court finds that Hayden fails to state any viable cause of action against McManus in his individual capacity. (See e.g. *Le Mere v. Los Angeles Unified School Dist.* (2019) 35 Cal.App.5th 237, 243 [sustaining individual defendants' demurrer to FEHA retaliation claim where the plaintiff did not allege facts to support the elements of a FEHA retaliation claim tailored to the individual defendants themselves, including whether they held retaliatory animus or engaged in retaliatory conduct].)

A.

5th

and 6th Causes of Action: FEHA Harassment on the Basis of Race/Gender

– SUSTAINED with LEAVE TO AMEND

Plaintiff

fails to state a claim against McManus for harassment, either based on race or gender. To establish a claim for FEHA harassment, a plaintiff must demonstrate

the following elements: (1) the employer harassed the employee, (2) on the basis of the employee's membership in a protected class, and (3) the harassment was sufficiently severe or pervasive to alter the conditions of employment. (*Etter v. Veriflo Corp.* (1998) 67 Cal.App.4th 457, 465.) Under Government Code section 12940, subd. (j), "harassment" in the workplace may take the form of 'discriminatory intimidation, ridicule and insult' that is 'sufficiently severe or pervasive to alter the conditions of the victim's employment and create an abusive working environment.' (*Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 869.) "[H]arassment focuses on situations in which the social environment of the workplace becomes intolerable because the harassment (whether verbal, physical, or visual) communicates an offensive message to the harassed employee." (*Ibid.*) Thus, "harassing conduct takes place 'outside the scope of necessary job performance, [and is] conduct presumably engaged in for personal gratification, because of meanness or bigotry, or for other personal motives.' ... " (*Ibid.*) "Harassment is not conduct of a type necessary for management of the employer's business or performance of the supervisory employee's job." (*Reno v. Baird* (1998) 18 Cal.4th 640, 646.) "A showing that harassment created a hostile work environment requires a showing that the defendant's conduct would have interfered with a reasonable employee's work performance and would have seriously affected the psychological well-being of a reasonable employee." (Martin v. Board of Trustees of California State University (2023) 97 Cal.App.5th 149, 170.)

Here, Plaintiff alleges that she is an African American female, giving her protected status under FEHA on the basis of both her race and gender. (Compl., ¶¶ 11, 196, 210.) However, Plaintiff fails to allege any additional factual support for the remaining elements of her harassment claim against McManus. Plaintiff generally alleges that "all Defendants," including Allen, McManus, and Defendant Rosa Reynosa, collectively subjected Plaintiff to "severe and

pervasive harassment” which was substantially motivated by her race and gender. (Id. ¶¶ 196, 204, 210, 218.) However, the only specific factual support for this vague and conclusory allegation pertains to Defendant Allen. (Id. ¶¶ 197-202.) Plaintiff fails to describe any specific incidents of harassment, whether based on race or gender, which McManus allegedly participated in or knew about. Without any factual allegations detailing what McManus allegedly did or failed to do, it cannot be determined whether McManus, in fact, harassed Plaintiff under the meaning of FEHA, whether his harassing conduct, if any, was related to Plaintiff’s gender and race, or whether his harassing conduct, if any, was sufficiently severe and pervasive to constitute a claim for FEHA harassment.

A

plaintiff is required to “set forth in his complaint the essential facts of his case with reasonable precision and with particularity sufficiently specific to acquaint the defendant of the nature, source, and extent of his cause of action.” (Elder v. Pac. Bell Tel. Co. (2012) 205 Cal.App.4th 841, 858, internal citation omitted.) Here, Plaintiff’s conclusory allegations that McManus participated in harassing conduct based on Plaintiff’s race and gender entirely fail to describe the “nature, source, and extent” of the alleged wrongdoing such that McManus can reasonably identify the basis for the harassment claims asserted against him. (Compl., ¶¶ 196, 204, 210, 218.) Notably, although Plaintiff alleges that McManus was her supervisor at the City, McManus’s mere supervisory position without any supporting factual allegations connecting McManus to any particular instance of harassment is insufficient to impute individual liability to McManus. (Id. ¶ 6.) In sum, Plaintiff is required to plead facts to support each element of her harassment claim, as it pertains to McManus, in order to maintain viable harassment causes of action against him.

Therefore,

McManus’s demurrer to the fifth and sixth causes of action in the Complaint is SUSTAINED with LEAVE TO AMEND.

B.

11th

Cause of Action: IIED – SUSTAINED with LEAVE TO AMEND

Plaintiff’s

eleventh cause of action for IIED also fails. To establish a cause of action

for IIED, a plaintiff must show: “(1) outrageous conduct by the defendant; (2) the defendant’s intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff’s suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” (Tserice v. Blue Cross of California (1989) 209 Cal.App.3d 878, 883 (Tserice).) ٤٤

Here,

Plaintiff generally alleges that “Defendants Allen, Reynosa, and McManus acted in an extreme and outrageous manner when they subjected Plaintiff to years of racial and gender-based harassment, discrimination, and hostile treatment from 2010 through 2025.” (Compl., ¶ 269.) Plaintiff also generally alleges that “Defendants acted extremely and outrageously when they placed Plaintiff on administrative leave while she was on approved vacation in July 2023, contacted her husband to demand surrender of her duty weapon and department vehicle rather than contacting Plaintiff directly, and ultimately terminated her employment...” (Id. ¶ 272.) Like Plaintiff’s harassment claims against McManus, her IIED claim suffers from improper group pleading and fails to identify the nature and scope of McManus’s personal involvement in the above actions. The only specific factual support for Plaintiff’s IIED claim pertains to Defendants Allen and Reynosa, without ever referencing McManus beyond vague and conclusory allegations. (Id. ¶¶ 269-271.)

To the

extent that Plaintiff’s IIED claim against McManus is based on harassing conduct, Plaintiff’s claim fails for the reasons outlined above. (See supra, Section I.A.) At minimum, the Complaint is entirely devoid of facts describing what “outrageous conduct” was committed by McManus himself or showing that McManus’s actions caused Plaintiff to suffer “severe or extreme” emotional distress. (Tserice, supra, 209 Cal.App.3d at p. 883.) To state a viable claim against McManus, Plaintiff is required to plead facts supporting each element of her IIED claim as it pertains to McManus. Vague group pleading and bare legal conclusions do not suffice.

Further,

to the extent that Plaintiff’s IIED claim against McManus is based on managerial decisions, if at all, recovery for such conduct is likely barred by the workers’ compensation exclusivity doctrine. (Compl., ¶ 272.) Worker’s compensation is the exclusive remedy “if the injuries did arise out of and in the course of the employment... notwithstanding that the injury resulted from the

intentional conduct of the employer, and even though the employer's conduct might be characterized as egregious.” (Shoemaker v. Myers (1990) 52 Cal.3d 1, 15.) That is, “[s]o long as the basic conditions of compensation are otherwise satisfied, and the employer's conduct neither contravenes fundamental public policy nor exceeds the risks inherent in the employment relationship, an employee's emotional distress injuries are subsumed under the exclusive remedy provisions of workers' compensation.” (Livitsanos v. Superior Court (1992) 2 Cal.4th 744, 754, internal citations omitted.) For example, “[e]motional distress caused by misconduct in employment relations involving [...] promotions, demotions, criticism of work practices, negotiations as to grievances, is a normal part of the employment environment” and a claim for emotional distress based on such actions would be barred by workers' compensation exclusivity. (Accardi v. Superior Court (1993) 17 Cal.App.4th 341, 352.)

Accordingly, as presently pled, Hayden fails to state a claim for IIED against McManus as a matter of law. Therefore, McManus's demurrer to the eleventh cause of action in the Complaint is SUSTAINED with LEAVE TO AMEND.

II. MOTION TO STRIKE – GRANTED

McManus moves to strike Plaintiff's request for punitive damages from the Complaint. Punitive damages are recoverable in tort actions where “the defendant has been guilty of oppression, fraud, or malice.” (Cal. Civ. Code § 3294, subd. (a).) California law follows a heightened pleading standard for punitive damages—vague and conclusory allegations are insufficient. (G. D. Searle & Co. v. Superior Ct. (Ct. App. 1975) 49 Cal. App. 3d 22, 29.)

Here, Plaintiff is seeking punitive damages from McManus in connection with both of her harassment claims and her IIED claim. (Compl., ¶¶ 206, 220, 276.) Plaintiff alleges in a conclusory fashion that Defendants' collective conduct was “willful, intentional, and malicious and done with intent to vex, injure, and annoy Plaintiff” and “in conscious disregard of plaintiff's rights. (Ibid.) As described above, however, Plaintiff fails to identify what incidents or actions McManus personally participated in, as distinguished from the other defendants. Without any factual details identifying McManus's actual conduct, Plaintiff's boilerplate scienter-related allegations fail to overcome the

heightened pleading requirement for punitive damages.

Therefore,

McManus's motion to strike is GRANTED.

III. APPENDIX: ADDITIONAL FACTUAL CHRONOLOGY

A

selection of additional examples are summarized below, but for brevity, this chronology does not include every alleged incident of harassment, discrimination, and retaliation in the Complaint.

Circa 2010: As soon as Deputy Chief Allen begins working for the Port Police, Hayden begins experiencing harassment, discrimination, and retaliation under his command. For example, Allen often spoke to Hayden with a "derogatory and haughty" tone, but he did not speak to other members of the force in this manner.

10/31/2019: Allen orders Hayden to cancel her plans and remain on her shift until she completed two internal affairs investigations on detectives under her command, even though they were not due until February 2020.

Unknown Date: In response to Hayden's "calm demeanor," Allen asks Hayden, "Anita, do you have any blood flowing through your body?," suggesting that Hayden was not conforming to racist stereotypes.

Circa 2020: Hayden is denied the opportunity to telecommute during the COVID-19 pandemic, while two male, non-African American Port Police Captains were permitted to telecommute during the same period.

10/28/2020: Hayden files a religious exemption with the City regarding the COVID-19 vaccination based on her beliefs as a Seventh Day Adventist Christian. Despite Hayden's religious exemption, Allen continuously requests Hayden to receive the COVID-19 vaccination. During a meeting, Allen asks Plaintiff, "Anita, what statistics are you reading regarding the COVID-19 virus? Because I want to know, so that I can read the statistics as well," which he said in an effort to "undermine and belittle Plaintiff's religious convictions."

11/2/2021: Allen requests a meeting with Hayden and informs her that he knew of a college in Long Beach that was willing to fill a Chief's position with an African American woman, however, the candidate was required to receive a COVID-19 vaccination.

Thereafter, Command Officers Association President Ferrara informs Hayden that Human Resources was requiring her to change her COVID-19 exemption documents to disclose that she was not vaccinated, or else be terminated in two weeks.

Unknown Date: During Navy Fleet Week, Hayden arrives at work wearing her Battle Dressed Uniforms ("BDU"), as instructed in a department-wide memo. Hayden receives a text message from Allen asking her about the BDU. Hayden responds that she would change into her "Class B" uniform. Hayden is the only commanding officer required to change out of the BDU during Navy Fleet Week.

Unknown Date: Hayden responds to an emergency incident at the Vincent Thomas Bridge while serving as the off-duty, on-call command officer. Hayden arrives wearing a white uniform because she responded from home. Photographs are taken of Hayden during the incident, which are sent to Allen. Allen later criticizes Hayden's uniform appearance in a "documented counseling memo" even though it was "standard practice" for commanding officers to "come as they are" to emergency incidents.

After another arson incident, Allen criticizes Hayden for responding while wearing a track suit, although other male, non-African American Captains routinely responded to crime scenes while wearing civilian attire.

Circa 2022: Allen systematically reduces Hayden's duties and responsibilities and isolates her from command functions.

6/17/2023: Hayden sends a text message to Allen requesting to speak with him regarding his tone of communications. Allen responds, "I can schedule a meeting with Chief Gazsi, and you better come with your facts, because I got mine."

7/19/2023 to 8/6/2023: Hayden takes an approved international family vacation. During her vacation, Port Police Captain Dan

Cobos and Lieutenant Rosa Reynosa come to Hayden's home to inquire about her whereabouts and leave a note requesting that Hayden contact Human Resources Director Angela Brown.

8/7/2023: Hayden contacts Ms. Brown, who advises Hayden that she had been placed on administrative leave without pay. On or around 8/9/2023, Hayden is advised that the leave was due to "Misuse of Time" and an internal affairs investigation against Hayden is ultimately launched.

8/9/2023: Hayden takes a copy of her work status of Port Police Headquarters, advising the Chief's Office that her doctor had taken her off work until 9/10/2023 due to "severe psychiatric injuries."

9/16/2025: Hayden is diagnosed with Post-Traumatic Stress Disorder ("PTSD") as a result of "workplace discrimination and harassment."

Unknown Date: Hayden files a workers' compensation claim for her psychiatric injuries, arising from "cumulative trauma" from 8/1/2020 to 8/9/2023.

Defendant Greg McManus to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court website on 9/21/26 at 2 p.m.